

**POLITICS, LAW, AND THE CHALLENGE OF SOCIAL MEDIA MISINFORMATION:
CANADIAN POLICY IN COMPARATIVE CONTEXT**

by

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Abstract

The spread of misinformation on social media presents a serious threat to the security of democracies around the world. Social media offers a particularly fertile ground for the spread of false information because machine learning algorithms are programmed to increase user engagement by recommending material that is sensational and polarizing—which misinformation often is. Previous research has proposed voluntary actions that social media companies could take to reduce the spread of harmful misinformation on their platforms. However, platforms have been reluctant to adopt new measures that might consequently reduce user engagement and, as a result, profitability. The lack of self-regulation has caused policymakers to intervene with new legislation aimed at controlling the spread of misinformation. At the same time, such efforts are constrained by protections for free speech and the political opposition, both of which shape how responses to the problem of social media misinformation are developed. This project examines legal constraints, political challenges, and legislative responses that have emerged in Germany, France, the U.K., the U.S., and Australia. This author finds that in countries like Germany and France, where freedom of expression is already restricted to protect democratic norms, governments pass legislation requiring the removal of illegal false information from social media platforms. By contrast, in countries like the U.K., the U.S., and Australia, where false claims remain a legally protected form of speech in the offline world, responses are focused more on behavioural regulation, whereby governments force platforms to address their products' potential to cause harm, rather than directly policing user-generated speech. The legal structures in Canada are most reflective of the U.K., the U.S., and Australia. Drawing on the legislative experiences of similar countries, the final section

includes recommendations for Canadian policymakers as they join the fight against the spread of misinformation.

List of Abbreviations

Conflict of Interests and Ethics (CIEC)

People's Party of Canada (PPC)

New Democratic Party (NDP)

Bloc Québécois (BQ)

Member of Parliament (MP)

American National Election Studies (ANES)

Network Enforcement Act (NetzDG)

Christian Democratic Union of Germany (CDU)

Christian Social Union of Bavaria (CSU)

Social Democratic Party of Germany (SPD)

Free Democratic Party (FDP)

The Federal Office of Justice in Bonn (BfJ)

U.K. Office of Communications (Ofcom)

Cybersecurity and Infrastructure Security Agency (CISA)

Australian Communications and Media Authority (ACMA)

Critical Election Incident Public Protocol (CEIPP)

Standing Committee on Procedure and House Affairs (PROC)

Chapter 1: Introduction

The viral spread of misinformation on social media has produced detrimental consequences for democracies around the world. Among its many negative effects, misinformation erodes trust in democratic institutions, democratic processes, and the media. It can also amplify ideological extremism and distrust between partisan groups, endanger public health, and, in the most severe cases, even lead to violence. During the 2020 U.S. Presidential election, President Donald Trump unleashed a campaign of misinformation to sow distrust in the legitimacy of the election, the security of mail-in-ballots, and the integrity of election officials (Qiu 2023). This proliferation of falsehoods ultimately led his supporters to storm the Capitol building on January 6, 2021, to disrupt the certification of what they believed was a stolen election. Meanwhile, the Covid-19 pandemic demonstrated how misinformation on social media transcends borders. False claims downplaying the severity of the virus, questioning the safety of vaccines, and promoting fake cures together added pressure to already overwhelmed health care systems around the world (Capatides 2020). In the U.K., conspiratorial beliefs that 5G mobile technology was associated with Covid-19 resulted in the destruction of numerous cellphone towers (Lewandowsky and Linden 2021, pp. 352). In Canada, the spread of misinformation on social media accelerated throughout the 2021 federal election. This surge is attributed to widespread health misinformation brought on by the Covid-19 pandemic and by the false narratives of election fraud, which had gained traction a year earlier in the U.S. (Bridgman et al. 2022, pp. 3). This observation introduces a pertinent line of inquiry: *Why* does misinformation spread so quickly on social media? And what, if anything, can democratic governments do to prevent it?

This project proceeds in four parts. First, I explain why misinformation spreads on social media with a sharp focus on the problem of misinformation in Canada. Research has found that the spread of misinformation is linked to the growth and profit of a social media company. To drive advertisement revenue, social media companies are motivated to encourage users to spend more time on their platforms. To increase engagement, machine learning algorithms are programmed to recommend content that shocks and outrages, regardless of whether it is inflammatory, politically extreme, or just plain wrong (Hao 2021). Thus, governments may conclude that compelling platforms to act in the public's interest is a justified response to the harmful effects that they produce in their pursuit of growth and profit. Second, I review four proposed responses to the spread of misinformation on social media and evaluate the evidence for their potential effectiveness. Further, I discuss obstacles to self-regulation, noting that social media companies may be hesitant to adopt certain responses if they believe doing so will require sacrificing potential growth and profit.

Third, I review governmental responses to the problem of social media misinformation. In democratic states, a government's arsenal of responses to the spread of misinformation on social media is constrained by the country's existing legal safeguards for freedom of speech. Established legal practices require that false claims recognized as protected legal speech offline also be protected online. In Canada, for example, courts have interpreted section 2(b) of the Charter of Rights and Freedoms to protect "communication that conveys or attempts to convey meaning" (*Thomson Newspapers Co.*, *supra*; *Irwin Toy Ltd.*, *supra*), regardless of whether the content being communicated is true or false (*R. v. Zundel*, 1992), except in cases of fraud, hate speech, incitement of violence, or threats—all of which convey meaning but are prohibited to protect others from harm. While misinformation can be harmful to others at times, there is also a

good reason for false claims to be considered a form of protected speech. Allowing governments to determine what “true” speech is and what it is not creates opportunities for the state to silence dissent and opposition. However, safeguards for freedom of expression have not precluded action entirely. Rather, they have shaped how policymakers have chosen to respond to the spread of misinformation on social media. In 2017 and 2018, Germany and France became the first democracies to pass legislation banning illegal false claims on social media. In 2022, the U.K. followed suit with a ban on illegal content and more rigorous enforcement of the platform’s own stated terms of service. In May 2023, two Democratic senators proposed the establishment of a Digital Platform Commission to regulate algorithmic fairness in the U.S. One month later, the Australian Labor Party proposed a regulatory regime that would require social media companies to respond to the spread of misinformation on their platforms. Both legislative proposals are currently in the very early stages of Parliamentary committee review. Considering objections from the primary opposition in each country, the bills may very well change throughout the review process or, ultimately, fail to pass. The Liberal Party of Canada has promised that similar legislation is forthcoming, but at the time of this writing, no bills addressing the problem of social media misinformation have been introduced in Parliament. Thus, in the final section, I conclude with prospects and policy recommendations for Canada. In considering established legal practices, political challenges, and emerging legislative trends, what recourse does Canada have to control the spread of misinformation in the digital age?

Chapter 2: The Problem of Misinformation in Canada

False claims distort the information environment, mislead voters, and increase hostility across partisan camps. In Canada, findings from the 2019 and 2021 federal elections demonstrate an upward trend in the frequency and volume of misinformation disrupting the Canadian

information environment. In addition, the growing affective polarization among the electorate and greater reliance on social media as a source of political information makes the recent rise of misinformation on social media a cause for concern.

2.1 Misinformation and the 2019 and 2021 Canadian Elections:

Following the 2019 election, a research team from McGill University and the University of Ottawa launched an investigation into the scale and impact of fake news stories on a range of mainstream and alternative social media platforms, including Facebook, Twitter, YouTube, Reddit, Gab, and 4chan (Dubois and Owen 2019, pp. 66). The authors identified four misleading news stories circulating on social media, all of which were published by the Buffalo Chronicle between October 7 and 17, 2019. Two of the four articles were dedicated to an alleged sex scandal which occurred during Prime Minister Justin Trudeau's tenure at West Point Grey Academy in Vancouver, B.C., while the other two articles propagated false claims that Trudeau had faked security threats during his campaign, and that the RCMP was charging Trudeau for obstruction in relation to the SNC-Lavalin affair (Dubois and Owen, 2019, pp. 67). Each story included some accurate details which may have enhanced believability. For instance, Trudeau did teach at West Point Grey Academy from 1999 to 2001 (Eagland 2019). However, there is no evidence that he engaged in sexual misconduct. Similarly, a report from the Conflict of Interests and Ethics Commissioner (CIEC) did find Trudeau guilty of breaking federal ethics rules by pressuring then Attorney General, Jody Wilson-Raybould, to help SNC-Lavalin avoid criminal prosecution, but the Prime Minister was never charged by the RCMP in relation to the affair (Russell 2019). Importantly, the stories were all based on rumours that were previously "seeded" on social media, which means that they were first proliferated by social media users in spaces with a smaller audience, such as a Reddit thread. Other users would then shift the narrative to

more public social media spaces “in order to gain interest or amplification from more influential actors, like news outlets or right-wing social media figures” (Dubois and Owen 2019, pp. 68). In all four cases, the authors observe that the false claims did not originate from the Buffalo Chronicle. Rather, the outlet was just very good at identifying false rumours on smaller platforms and then amplifying them via sponsored Facebook posts to drive users to their website (Dubois and Owen 2019, pp. 68). Despite these efforts, the stories only appeared to have taken hold among “conservative, conspiratorial, and far-right communities,” whose political predisposition may have made them more readily accept negative false claims about the leader of the Liberal party (Dubois and Owen, 2019, pp. 67). These findings from the 2019 election period portray misinformation as a fringe activity spreading within already extreme political spaces on social media. Most Canadians remained unaware of the false claims.

In 2022, researchers from McGill University and the University of Toronto released a second election misinformation report, this time tracking the flow of misinformation during the 2021 federal election across Facebook, YouTube, Twitter, Reddit, TikTok, 4chan, Telegram, and WeChat (Bridgman et al. 2022, pp. 7). The report concluded that the spread of misinformation on social media in the lead up to the 2021 federal election was more invasive than it had been in 2019. The authors give two reasons for this. First, the Covid-19 “infodemic” had already metastasized across various social media networks. In B.C. and Quebec, posts incorrectly claimed that Canadians who were not fully vaccinated would be prevented from voting, merging pandemic and election misinformation into one super-conspiracy that drew from and fed into existing fears of government overreach (Bridgman et al. 2022, pp. 37). Additionally, Trump’s false claims of election fraud during the 2020 U.S. Presidential election had a significant influence on the 2021 Canadian federal election campaign. Posts frequently echoed Trump’s

claims of mass vote fraud, distrust of mail-in ballots, and the rigging of Canadian “voting machines,” even though in Canada votes are counted by hand (Bridgman et al. 2022, pp. 37-38). One Canadian 4chan user suggested that Trudeau might “pull a Biden and get 20 million mail-in votes,” while Maxime Bernier, the leader of the People’s Party of Canada (PPC), suggested that “other parties would try to find reasons to reject PPC ballots and invited Canadian ‘patriots’ to act as scrutineers to ensure the integrity and fairness of the election” (Bridgman et al. 2022, pp. 37). In this way, misinformation on social media can be understood as a cyclical phenomenon where false narratives are repurposed to fit local contexts.

Bridgman et al. fielded a rolling nationally representative survey between August 23 and September 20, 2021, to gauge the impact of misinformation on Canadian voters during the 2021 federal election. Across partisan groups, distrust in mail-in voting was highest among PPC supporters, with only 20% believing that voting by mail was just as trustworthy as voting in-person (Bridgman et al. 2022, pp. 37). By contrast, 67% of Liberal supporters, 62% of New Democratic Party (NDP) supporters, 51% of Bloc Québécois (BQ) supporters, and 48% of Conservative supporters believed that both options were equally trustworthy (Bridgman et al. 2022, pp. 37). This result is not surprising considering Bernier’s messaging. At the same time, Bernier did not push issues of election fraud as hard as Trump did during the 2020 U.S. election, which suggests that he was not motivated by a desire to overturn the results of the election. Rather, stoking distrust in the integrity of the election may have simply been a campaign strategy to appeal to his voting base, who were already predisposed to conspiratorial beliefs. The survey results show PPC supporters were more likely than supporters of any other political party to believe that the government in China had developed coronavirus as a bioweapon and that climate change was a hoax (Bridgman et al. 2022, pp. 39-40; pp. 43). In this way, we can understand the

propagation of false claims as an important part of the political process, whereby politicians use social media to bypass traditional media gatekeepers and distort narratives to advance some other goal. In Canada, promoting false narratives as a political strategy, however, is not exclusive to fringe parties. During the 2021 election, political elites from Canada's two major parties, the Conservative Party, and the Liberal Party, both used social media as a tool to spread misinformation. Notably, Cheryl Gallant, a Conservative Member of Parliament (MP), posted a video to YouTube in which she claimed that the Trudeau administration was preparing to enact climate lockdowns (Bridgman et al. 2022, pp. 21). Similarly, Chrystia Freeland, a Liberal MP, shared an edited video clip on Twitter in which then leader of the Conservative Party, Erin O'Toole, seemingly claimed to support the privatization of the Canadian health care system. Above the video, Freeland wrote: "Canada's public universal health care system is one of our greatest strengths...Last year, as Covid-19 raged, Erin O'Toole was asked if he would bring 'for-profit' healthcare to Canada. He responded unequivocally: 'yes'" (Bridgman et al. 2022, pp. 21). In the unedited version of the clip, O'Toole states that he would explore public-private synergies while maintaining universal access to health care in Canada, an important contextual element which is left out of Freeland's post (Bridgman et al. 2022, pp. 21). In both cases, scoring political points appears to be the primary motivation for politicians who promote false claims. The posts aim to disparage the opposition, which candidates use to build rapport with supporters who may already harbour negative feelings about the out-group.

To gauge the effect of misinformation on voters during the 2021 election, the authors asked respondents to self-report exposure to various news items and then indicate whether they believed the claims to be true. The false news stories included inaccurate claims that Conservative leader Erin O'Toole wanted to privatize the health care system, that the Liberal

party was preparing to impose climate lockdowns, that anti-vaccine protesters had launched a large-scale and coordinated effort to disrupt the Liberal campaign, and that Trudeau had instructed Jody Wilson-Raybould to lie about the SNC-Lavalin affair (Bridgman et al. 2022, pp. 21-22). By comparison, the four true news stories reported that Trudeau had required all federal public servants without legitimate medical exemptions to be vaccinated against Covid-19, that multiple Liberal campaign events were cancelled or postponed because of anti-vaccine protests, that O'Toole had pledged to "increase Canada's vaccination rate beyond 90% within two months of being elected," and that Chinese state media had threatened retaliation if O'Toole fulfilled election promises to increase Canadian presence in the Indo-Pacific (Bridgman et al. 2022, pp. 22). To assess accuracy of recall, the researchers also fabricated two news stories: the first claimed that Trudeau had announced a partnership with Alphabet to build offices in five Canadian cities, while the second falsely quoted Stephen Harper who had allegedly claimed that a Conservative administration would have been better equipped to handle the Covid-19 pandemic (Bridgman et al. 2022, pp. 23). Across all true and false news stories, a majority of respondents who remembered seeing the story believed it was true. For instance, 56% of those who reportedly saw the false claim that the Liberals were preparing to impose a climate lockdown believed it was true (Bridgman et al. 2022, pp. 24). That being said, 72% of those who claimed to have seen one of the survey's fabricated news stories also believed that it was true, suggesting that memory failure does not reduce belief in false claims (Bridgman et al. 2022, pp. 24). In effect, Canadians are, on average, more likely than not to believe that something is true regardless of whether it is based in fact or in fiction.

2.2 Why does misinformation spread?

Prior research has suggested that misinformation spreads because voters rely on partisan cues when judging the veracity of the information they encounter on social media. To reduce cognitive demand, voters look for shortcuts by adopting a set of beliefs that align with those of their preferred party (Malka and Adelman, 2022, pp. 3). This occurs because accurately informing oneself on political affairs is time-consuming and generally requires an existing understanding of politics and other relevant issues, which not everyone has (Anspach 2017, pp. 594). In addition, people will more readily accept information that sustains their worldview and reject that which does not, to avoid the cognitive discomfort that comes from holding conflicting attitudes (Kuklinski et al. 2000, pp. 794). The survey data collected during the 2021 federal election supports these earlier findings. For instance, 73% of Liberals who reported exposure to Freeland's tweet incorrectly claiming that O'Toole wanted to privatize Canada's health care system believed it was true, whereas only 40% of Conservatives said the same (Bridgman et al. 2022, pp. 24). A similar effect is observed with Conservative congenial misinformation published during the 2021 election campaign. False claims that Trudeau instructed Jody Wilson-Raybould to lie about the SNC-Lavalin affair casts the leader of the Liberal party in an unfavourable light and would be more likely to appeal to a Conservative audience. Of those who self-reported exposure to this false claim, 90% of Conservatives believed that it was true while only 56% of Liberals said the same (Bridgman et al. 2022, pp. 24). This suggests that people are more likely to accept and perhaps reshare misinformation that aligns with their political predispositions.

Furthermore, research suggests that the perceived novelty of a false claim is strongly correlated to its spread. A 2018 study by Vosoughi et al. found that factual tweets took six times

longer than false tweets to reach 1500 people (Vosoughi et al. 2018, pp. 3). False political information was found to spread the fastest, reaching 20,000 users in the same amount of time it took for all other categories of misinformation to reach 10,000 users (ie. business, terrorism, science, entertainment, natural disasters, urban legends) (Vosoughi et al. 2018, pp. 3). The authors posit that the reason falsehoods travel more quickly on social media is because misinformation is perceived by users as more novel. They argue that novel information is valuable because it “provides the greatest aid in decision-making” and “conveys social status [that] one is in the know” (Vosoughi et al. 2018, pp. 4). To test this theory, the authors scraped Twitter for user replies to both factual and false tweets and then calculated the fraction of words in each reply that mapped onto eight categories of emotion—anger, fear, anticipation trust, surprise, sadness, joy, and disgust (Vosoughi et al. 2018, pp. 5). Replies to tweets containing misinformation consisted of a greater proportion of words expressing emotions of surprise and disgust, whereas replies to tweets containing accurate information expressed greater sadness, joy, anticipation, and trust (Vosoughi et al. 2018, pp. 5). Thus, the authors conclude that people perceive misinformation to be more novel than accurate information, and that this novelty, which signals that one is “in the know,” is a critical determinant in why people choose to reshare false information on social media (Vosoughi et al. 2018, pp. 5).

Together, these findings suggests that people may just naturally gravitate to content that is shocking or disturbing, or that reaffirms partisan beliefs, regardless of its veracity. However, recent evidence indicates that social media companies are not blameless in the amplification and spread of misinformation on their platforms. The algorithms that support Facebook’s growth are programmed to increase user engagement, and therefore drive revenue, by populating users’ news feeds with content that elicits shock and outrage, irrespective of its accuracy or reliability

(Hao 2021). The algorithms are programmed in this manner because, as Vosoughi et al. identify, content that generates feelings of surprise or disgust is more engaging and will increase the amount of time that someone spends on the platform. In fact, an internal Facebook presentation confirmed in 2018 that the platform's "algorithms exploit the human brain's attraction to divisiveness...[and] if left unchecked" would continue to supply users with "more divisive content in an effort to gain user attention and increase time on the platform" (Lauer 2021, pp. 398-399). In assigning liability to social media companies, the important question to answer is whether the spread of misinformation harms society. The significant proportion of belief in false claims during the 2021 Canadian federal election suggests that the spread of misinformation negatively impacted public perception of the candidates. However, Bridgman et al. assess that the impact that misinformation had on the election overall was minimal. Still, false claims that denigrate the opposition could, over time, affect polarization. Researchers have posited that social media echo chambers expose users to content that reinforces existing ideological biases, leading them to adopt increasingly extreme positions. A 2020 experiment by Allcott et al. found that participants who were asked to deactivate their Facebook accounts for a period of four weeks in the lead up to the November 2018 U.S. midterm election were 8% less polarized on political issues, such as immigration, compared to those who did not deactivate their accounts (Allcott et al. 2020, pp. 630-631). When compared against data from the American National Election Studies (ANES), the effect of deactivation was 42% larger than the entire electorate's increase in political issue polarization between 1996 and 2016 (Allcott et al. 2020, pp. 652). This result suggests that social media does contribute to polarization, which weakens social cohesion by emphasizing division and makes it more likely that people will adopt false beliefs that reflect

poorly on the out-group. This, in turn, can erode trust in political institutions and electoral processes, especially when the opposition holds power.

Facebook leadership was reportedly alerted by internal researchers to the polarizing effects of their algorithms, leading to new proposals to combat political extremism and misinformation on their platforms. One strategy, proposed internally to Facebook leadership, involved “sentiment analysis,” a process of machine learning that interpreted opinion in text and could hide content that it identified as politically extreme, with an option for users to choose to reveal hidden content (Hao 2021). In theory, this type of intervention would prevent algorithms from recommending inflammatory and false content to increase user engagement. The project was ultimately not pursued, as Facebook leadership considered it “antithetical to growth” (Hao 2021). This suggests that social media companies are unlikely to voluntarily pursue efforts to address how misinformation spreads on their platforms, as doing so would likely threaten their profitability. Instead, current platform practices focus on removing false information that violate community guidelines. Despite Facebook’s promise to attach warning labels to health misinformation debunked by its fact-checking partners, a 2020 study estimated, from a sample of 104 posts containing misinformation about the coronavirus, that 65% of claims debunked by their partner organizations remained on Facebook without warning labels (Legon and Alsalman 2020). This allowed a post claiming that “modern medicine will cure you to death,” and that natural remedies, such as oregano oil, could fight coronavirus, to be reshared 2718 times (Legon and Alsalman 2020). Similarly, false claims that the U.S. 2020 election was rigged or stolen have remained on Twitter despite the platform’s policy to “label or remove unverified information about election rigging” (Swenson 2023).

Many social media companies also use machine-learning content moderation tools to identify and remove false claims that violate their terms of service. However, catching false claims before they go viral is a challenging feat for AI as it cannot extrapolate beyond the data it was trained on. For instance, a machine learning model trained to detect Holocaust denial would not immediately be able to spot content denying other genocides (Hao 2021). Content moderation tools can also be easily outwitted by intentional spelling errors. In Canada, users posting Covid-19 misinformation sometimes replaced the word “vaccine” with “v@ccine” to avoid automated detection (Bridgman et al. 2022, pp. 31). Political obstacles have also challenged stronger application of content moderation tools. In 2016, Republicans claimed that misinformation detection tools used by Facebook had a liberal bias that was unfairly penalizing conservative content (Hao 2021). This claim is difficult to prove. At present, there is no evidence to suggest that content moderations tools do have a liberal bias. If Republicans, relative to Democrats, are responsible for spreading a greater proportion of misinformation, the models would have removed or attached warning labels to a greater proportion of conservative content. Yet in response to Republican grievances, Facebook altered its moderation approach, taking fairness to mean that models should not remove more conservative-congenial misinformation than liberal (Hao 2021). In this context, the growing reliance on social media as a source of political information in Canada is cause for concern as “every post that escapes the content moderation filters will continue to be pushed higher up on the news feeds” to maximize user engagement (Hao 2021). While surveys from the 2019 election found that Canadians primarily got their news from a core set of broadcast media outlets, findings from the 2021 election show that an increasing number of Canadians are getting their news and political information from

social media. Notably, 52% of Facebook users and 46% of Twitter users reportedly use the platform as a source of political information (Bridgman et al. 2022, pp. 29).

Chapter 3: Evaluating the Likely Effectiveness of Proposed Responses to Misinformation Spread

The problem of misinformation on social media has captured the attention of scholars in political science, communications, sociology, psychology, and law, among others. Across disciplines, observers of this issue have proposed several voluntary actions that social media companies could take, ranging from user-facing interventions, such as fact-checking and nudging, to news feed-based interventions, such as demoting like-minded content to reduce the echo chamber effect or using crowdsourced trust ratings of news websites to inform ranking algorithms. In the section that follows, I evaluate the evidence for their potential effectiveness. Research by Pennycook et al. and Grady et al. each identify news ways that social media companies can improve the effectiveness of their existing fact-checking regimes. Similarly, findings from Andi and Akesson suggest that social norm nudging may be an effective and politically neutral way to encourage responsible resharing among social media users. In their collaborative experiment with Meta, Nyhan et al. reduced one third of the like-minded content that users saw on their Facebook news feeds to gauge its effect on polarized attitudes and engagement with partisan-friendly misinformation. By contrast, Epstein et al. test whether laypeople's assessments of a news source's credibility align with that of independent fact-checking organizations to support their recommendation for crowdsourced algorithm rankings.

3.1 Fact-Checking

Fact-checking is the process of attaching warning labels to false or misleading content to signal to social media users that the claim has been discredited by an independent fact-checking organization. This, in turn, is meant to dissuade users from resharing information identified as false with their social networks and to prevent misbeliefs from forming. Certain social media companies, such as Facebook and Twitter, already engage independent fact-checking partners to help identify misinformation on their platforms. However, as previously discussed, Facebook has consistently failed to attach warning labels to health misinformation debunked by its own partner organizations, enabling a significant amount of harmful misinformation to continue circulating. Pennycook et al.'s findings, therefore, advance new practices that social media companies can adopt to improve their fact-checking processes.

In line with previous research findings, the authors observe that misinformation tagged as “Disputed by 3rd party fact-checkers” does result in a reduction of respondents’ belief in false claims (Pennycook et al. 2020, pp. 4954). At the same time, the presence of warning labels produced an implied truth effect whereby 38% of participants reported that they thought any untagged headlines had already been checked and verified as true, even though some of them were false (Pennycook et al. 2020, pp. 4954). Many false claims that have been debunked by fact-checking organizations go untagged on social media platforms. Thus, current practices may encourage greater spreading of misinformation, as users may incorrectly infer that untagged headlines are true when, in fact, they have yet to be labeled as false. Nevertheless, the authors find that the implied truth effect can be resolved by introducing a verification label. Participants assigned to a second treatment condition were shown a simulated news feed in which a subset of false headlines were labeled “FALSE,” and a subset of true headlines were labeled “TRUE”

(Pennycook et al. 2020, pp. 4950). Participants in this treatment group were less likely to consider resharing any of the untagged headlines and much more likely to consider resharing a verified one (Pennycook et al. 2020, pp. 4952). Specifically, 46% of participants said they would consider resharing headlines labeled as “TRUE,” compared with 40% of participants in the control group (Pennycook et al. 2020, pp. 4952). This suggests that employing warning and verification labels as part of a fact-checking regime makes people more cautious about the content they reshare online and may encourage greater sharing of accurate information.

However, the long-term success of this response still largely depends on how attentive users are to fact-checking labels over time and how much they trust independent fact-checking organizations. For instance, during the 2021 Canadian federal election, the labelling of Chrystia Freeland’s tweet as “manipulated media” prompted speculation among some Twitter users that the tagging was deliberately orchestrated to assist the Conservatives in the election. Thus, in certain cases, fact-checking may even fuel further conspiratorial thinking. Meanwhile, Grady et al. observe that the effect of warning labels on perception of information accuracy weakens over time. The authors devise three treatment conditions: one in which participants are warned that a news item is false after they have already rated its accuracy, a second in which a warning appears underneath the false news item, and a third in which the warning obscures the false news item from view, forcing the participant to click to reveal it (Grady et al. 2021, pp. 6). Consistent with Pennycook et al.’s findings, the authors initially observe that warning labels that were placed below a false news item or that obscured it from view decreased respondents’ belief in false news items compared to those who saw the warning label after having already rated the article’s accuracy (Grady et al. 2021, pp. 8). In a follow up survey fielded two weeks later, participants

were shown the same true and false news headlines but without warning labels. The effect of the initial warning label did not persist into the second experiment. In the second iteration, participants were much more likely to believe that false headlines, especially partisan-friendly ones, were true (Grady et al. 2021, pp. 8-9). Thus, the authors concluded that as memory of a fact-check fades, “what remains is the on-going tendency to believe what fits with our political views” (Grady et al. 2021, pp. 12). If anything, this flaw demonstrates the importance of updating fact-checking practices to include a verification label. Even if users have forgotten about prior warning labels, the presence of a verification label may encourage them to exercise caution in resharing any untagged headlines.

3.2 Nudging

Adjacent to fact-checking, researchers have proposed “social norm” nudging as a response to social media misinformation. In Andi and Akesson’s experiment, the “nudge” which appears at the top of a simulated news feed reads as follows: “There is a lot of misleading and false information online,” and “most responsible people think twice before sharing content with their friends and followers” (Andi and Akesson 2020, pp. 110). This response draws on recent findings that suggest people are less likely to adopt false beliefs that are consistent with their existing political views when they are encouraged to deliberate before assessing the veracity of new information, rather than relying on partisan cues (Bago et al. 2020, pp. 1611). In line with this principle, Andi and Akesson’s nudge encourages respondents to comply with social norms by reflecting before they decide to reshare some post or news article with their social network.

To test the effect of the “social norm” nudge the researchers selected three false news articles that were published online at the time of the experiment, two of which were

conservative-congenial and one which was liberal-congenial. Participants were first given the option to read the article from its original source website before indicating whether they would share it with their social media network (Andi and Akesson 2020, pp. 107). While 19% of participants in the control group indicated that they would share the article with their social media network, willingness to reshare dropped by 5 percentage points for those who received the social norm nudge, with no significant difference between Republican and Democratic respondents (Andi and Akesson 2020, pp. 115-116). While this suggests that nudging could reduce the spread of false information on social media, the absence of any factual articles from the simulated news feeds makes it more difficult to interpret these findings. Treated participants may have just given the response they thought was right or that they believed the researchers wanted (Andi and Akesson 2020, pp. 119). The experiment design also makes it impossible to gauge whether nudges would discourage people from sharing high-quality news articles (Andi and Akesson 2020, pp. 120). Such a consequence could impede the sharing of reliable information that people need to make informed political decisions.

3.3 Modifying the Selection of News Feed Content

Scholars have suggested that social media algorithms “fuel extremity by repeatedly showing people congenial content from like-minded sources and limiting exposure to counterarguments that could promote moderation and tolerance” (Nyhan et al. 2023a, pp. 137). In this way, social media is thought to create echo chambers, which increase polarized attitudes and adoption of misinformation that sustains existing worldviews. In this section, I review two proposed responses to modify the selection of news feed content.

Findings from a 2023 collaborative experiment between Nyhan et al. and Meta suggest that reducing the position of like-minded content on a Facebook user's news feed is not an effective response to the problem of social media misinformation. The experiment uses a large sample of active adult Facebook users ($n = 23,377$) in the U.S. for a period of three months between September and December 2020 (Nyhan et al. 2023, pp. 138). For participants in the treatment group, the researchers demoted one third of all content from "friends, groups, and Pages that were predicted to share the participant's political leaning" (Nyhan et al. 2023a, pp. 140). Importantly, demoting content did not remove it from a participant's news feed. Rather, its position in the feed depended on the respective user's "inventory" of available content (Nyhan et al. 2023b, S5). If a user's news feed was usually populated with posts from like-minded sources, they would not need to scroll very far before seeing the demoted posts, as their "inventory" would have less cross-cutting or political neutral content with which to populate the feed (Nyhan et al. 2023b, pp. S5). After applying this intervention, the authors observed a 33% reduction of views from like-minded sources (Nyhan et al. 2023b, pp. S5). However, they found that this type of intervention had no observable effect on reported attitudes of affective polarization, party-congenial attitudes, or ideological extremism (Nyhan et al. 2023, pp. 137). In fact, even though treated participants saw more cross-cutting content, they were less likely to engage with it than control participants (Nyhan et al. 2023, pp. 142). The lack of observed effect may be explained by the fact that like-minded content was not excluded from a treated participant's news feed. Users could still view the demoted posts if they scrolled far enough to view it. In other words, the look and feel of a user's news feed may not have changed very much, if at all. Future research could assess whether other types of modifications have a stronger effect on reducing

polarized attitudes. For instance, excluding portions of like-minded content from news feeds or replacing a portion of it with more centrist political content to encourage moderation across partisan camps. Moreover, disabling user's ability to like, comment, react, or reshare content from those who repeatedly post misinformation could decrease the likelihood of exposure, as content with lower rates of engagement are less likely to be recommended to other users by social media algorithms.

An alternative to the unilateral modification of available content is ranking the position of content according to "crowdsourced" news credibility ratings (Epstein et al. 2019). Epstein et al. propose that platforms ask their users to rate the trustworthiness of news sources and then promote or demote content according to those ratings (Epstein et al. 2019). In their view, this would make "content from domains that are distrusted by the crowd...less likely to be displayed" (Epstein et al. 2019). However, scholars have suggested that for such a system to work, users must be able to, at least in the aggregate, correctly distinguish between credible and non-credible news sources (Epstein et al. 2019). To test how laypeople respond to a crowdsourced rating system, the authors asked participants to rate the trustworthiness of 10 mainstream sources, 10 hyper-partisan sources, and 10 fake news sources. Treated participants were informed that their answers would be "used to determine which news sources are relatively trustworthy and [would] be shared with Facebook with the goal of improving their platform" (Epstein et al. 2019). The results show that both treatment and control participants indicated higher trust in mainstream sources than they did in hyper-partisan or fake news sites, which suggests that laypeople can, at least in the aggregate, differentiate between true and false news sources. At the same time, Republicans in the treatment condition indicated slightly higher trust in Fox News and lower

trust in CNN than did Republicans in the control condition, while the opposite was true for Democratic respondents (Epstein et al. 2019). This suggests that knowing that the results would inform content ranking on social media may motivate people to respond strategically in terms of their preferred partisan networks (Epstein et al. 2019). However, the findings do not suggest that people are especially motivated to exploit a crowdsourced rating system for political gain by intentionally giving high trust ratings to fake news websites. Thus, a crowdsourced ranking system could be a democratic solution to algorithm modification focused on reducing exposure to false information. Of course, it remains to be seen whether social media companies will voluntarily pursue actions to modify the selection of available content over less invasive alternatives, such as fact-checking or nudging, as the former may require sacrificing potential growth and profit if altering a user's news feed causes them to spend less time online.

Chapter 4: Government Responses to the Spread of Social Media Misinformation

Following persistent failures from social media companies in addressing the problem of misinformation on their platforms, governments around the world have begun to either adopt or propose news laws aimed at curbing its spread. In this section, I describe the development of misinformation removal laws in Germany and France, as well as recent legislative proposals aimed at combatting the spread of misinformation in the U.K., the U.S., and Australia.

4.1 Content Removal in Germany and France

In 2017, Germany became the first European country to pass legislation forcing social media companies to remove hate speech, defamation, and false information about the Holocaust from their platforms. The Network Enforcement Act (NetzDG) was implemented by the governing coalition Union Parties (CDU/CSU), and the Social Democratic Party of Germany

(SPD), as a response to the rise of “unlawful content” on social media, such as hate speech and disinformation, that accompanied the arrival of more than one million Syrian asylum seekers to Germany in 2015 (Heldt 2020). In the government’s view, social media platforms did “not adopt sufficient self-regulatory measures” in removing speech that was already illegal under German criminal law (Heldt 2020). In 2017, a German fact-checking organization found that YouTube removed 90% of content that violated speech restrictions in the German criminal code, Facebook removed 39%, while Twitter removed 1% (Echikson and Knodt 2018, pp. 2). As a result, policymakers concluded that government intervention was necessary to force social media companies to behave in accordance with existing laws.

As a legislative response to the spread of misinformation on social media, NetzDG’s scope of coverage over harmful information is limited to categories of speech that are already illegal under the criminal code, such as Holocaust denial, defamation, “incitements to hatred and insults...based on [an individual’s] racial, national, religious, or ethnic background,” or Nazi “propaganda material” (Glaun 2021). Proponents suggest that by limiting the scope of coverage to illegal content, NetzDG, at least in theory, protects legitimate free speech. Whether these protections are realized in the enforcement process is another case altogether. NetzDG requires that social media companies with at least two million registered users in Germany set up a reporting procedure for users to flag illegal content. Once a post is flagged, the platform has 24 hours to review it and remove content that is “manifestly unlawful” (*Network Enforcement Act 2017*). Consistent failure to do so could result in a financial penalty of up to €50 million. According to NetzDG’s explanatory memorandum, “content is manifestly unlawful if no in-depth examination is necessary to establish the unlawfulness” (Heldt 2019). If there is any

doubt about the content’s “unlawfulness”—for instance, in the case of defamatory speech—platforms may take up to seven days to deliver a verdict (Heldt 2019). Critics have suggested that the limited time frame in which to reach a decision combined with the high penalty for consistently failing to remove illegal content could cause platforms to remove content without thorough examination, leading to the censorship of legitimate speech (Lomas 2023).

In 2018, France adopted a similar regulatory framework to compel social media companies to remove illegal content from their platforms. The Organic Law on the Fight Against the Manipulation of Information was adopted by Emmanuel Macron’s party, La République, in response to the surge of misinformation that marked the 2017 French Presidential election (Chrisafis 2018). Among them were numerous false claims about President Macron, including that he had an offshore bank account in the Bahamas (Chrisafis 2018). While Macron stated that the new anti-misinformation law was necessary to stop the proliferation of “lies made up to tarnish political officials,...public figures, [and] journalists,” the law is also considered by many proponents to be a precautionary effort against foreign interference in French elections (Nugent 2018). Unlike NetzDG’s scope of coverage, which is limited to specific categories of misinformation, France’s Organic Law allows for the removal of any “inaccurate or misleading allegations” that are likely to affect the integrity of the vote when “disseminated on a massive scale in a deliberate, artificial, or automated manner via an online public communication service” (Blocman 2019). The French Organic Law aims specifically to protect elections from serious misinformation threats, whereas NetzDG targets illegal false claims regardless of their potential impact on the democratic process. This explains why the former’s conditions for operation are limited to the election period, whereas the latter remains in effect at all times. The procedure for

reporting and removing misinformation from social media in France also differs from the German system. Rather than reporting illegal content to the platform, political parties, public authorities, or individuals report false claims to the court (Funke and Flamini 2023). A judge then reviews the claim and delivers a ruling regarding its removal within 48 hours. This ruling is based on three factors: first, whether the claim is proven to be false; second, whether its scale of dissemination is “massive, deliberate, artificial, or automated;” and third, whether the first two factors combined make the claim likely to affect the integrity of the election (Blocman 2019). Many legal scholars have argued that this system has serious logistical flaws. Using the allegations of Macron’s offshore bank account as an example, certain false claims may not be verifiable within the span of 48 hours (Nugent 2018). Thus, it is likely that “only the most blatantly false statements, backed with convincing empirical evidence as to impact” would ever be removed (Craufurd-Smith 2019, pp. 70). While proponents have suggested that these requirements establish sufficient guardrails for the protection of legitimate free speech, others have argued that the overall effectiveness of the law is reduced as false statements that cannot be verified within the short time frame will continue to spread online.

4.2 Evaluating Effectiveness and Evidence of Censorship

Public response to content removal laws has been mixed. A 2018 poll found that 87% of German voters approved of NetzDG (Tworek and Leerssen 2019, pp. 2). At the same time, the law was met with heavy criticism from members of the German Journalists Association, civil rights activists, academics, and lawyers who asserted that NetzDG “jeopardizes the core principles of free expression” (Tworek and Leerssen 2019, pp. 3). Members of Germany’s opposition party, the Free Democratic Party (FDP), have asserted that content removal should be decided by the courts rather than by private social media companies (Thomasson 2018).

Meanwhile, in France, where content removal decisions *are* made by the courts, both right- and left-wing opposition parties argued that the Organic Law constituted a form of “thought police” (Fiorentino 2018). In this section, I consider whether the concerns of critics have been realized by evaluating whether content removal laws suppress legitimate speech as an unfortunate consequence or whether they are successful in controlling the spread of misinformation on social media. In Germany, reports from 2018 show that Facebook removed 21% of the user complaints it received, YouTube removed 27%, and Twitter removed 11% (Tworek and Leerssen 2019, pp. 5). The relatively low removal rates suggest that platforms did not simply remove content without first scrutinizing its legality despite having a short period in which to reach a decision. However, this does not mean that removal was always warranted. Individual biases may lead reviewers to interpret legal statutes differently—perhaps some more broadly than others.

In 2018, four user-initiated lawsuits were opened against Facebook for content removal violations. In some cases, users argued that Facebook had deleted legal content. In others, users argued that Facebook had removed content beyond its own policies against hate speech (Echikson and Knodt 2018, pp. 9). Rulings varied, with some judges “protecting the freedom of expression enshrined in...the German constitution,” and others “assert[ing] Facebook’s right to enforce its community guidelines” (Echikson and Knodt 2018, pp. 9). Ultimately, these rulings do not reveal whether the platforms’ approach to content removal is careful and balanced, whether judges hold different biases when it comes to interpreting the unique context of a case, or whether both the platforms and the courts are equally inconsistent in matters related to content removal. Still, opponents of these laws maintain that there is valid cause for concern when governments implement content removal regimes as the possibility of censorship cannot be ruled

out. Notwithstanding possible infringement on freedom of expression, evidence suggests that NetzDG is not an effective method of reducing the spread of illegal content, even when enforced by the government. Most recently, Germany's Federal Office of Justice (BfJ) has threatened Twitter with a €50 million fine for consistently failing to remove illegal content, such as defamatory statements and Holocaust denial, from its platform (Woollacott 2023). This suggests that the risk of incurring substantive fines has not sufficiently motivated social media companies to respond to harmful misinformation on their platforms. Moreover, analysts have identified that the effectiveness of NetzDG is limited still as platforms are not required to prevent re-uploads of illegal material by applying numeric values to previously deleted content (Echikson and Knodt 2018, pp. 14).

By contrast, there is no evidence to suggest that France's Organic Law on the Fight Against the Manipulation of Information has censored legitimate free speech. Recall that the courts can only mandate that misinformation be removed if it is published within the election period, is likely to affect the integrity of the election, and is "disseminated on a massive scale in a deliberate, artificial, or automated manner via an online public communication service" (Blocman 2019). During the 2022 Presidential election period, independent fact-checking organizations identified 169 separate fake news stories on social media (Hénin 2022). Among these were false claims that "22,500 'Yellow Vests' [had] been deprived of the right to vote" for opposing Macron's fuel taxes, that 2 million votes for the right-wing opposition candidate, Marine le Pen, had "suddenly disappeared," and that "Emmanuel Macron was the number one candidate in 100% of electronic voting machines" (Hénin 2022). While the sheer volume of misinformation was high, fact-checkers indicated that none of the false claims reached the

threshold that would have made them likely to alter the “integrity of the voting process or jeopardize its outcome” (Hénin 2022). In effect, none of the false claims circulating on social media within the law’s period of operation were perceived to have reached the level necessary for a judge to mandate its removal from social media. As such, legitimate speech could not have been censored. At the same time, the spread of false claims throughout the election period calls the effectiveness of the law into question. The law is designed to assess the impact of each individual piece of misinformation on the outcome of the election. Yet, it is the impact of misinformation in the aggregate that makes it difficult for voters to know what to believe or who they can trust. It is the combination of these false claims and the speed at which they can spread that presents a threat to democracy.

4.3 Regulatory “Codes” in the U.K., the U.S., and Australia

In the UK., the U.S., and Australia recent legislative proposals addressing the spread of misinformation on social media depart from the content removal laws adopted by Germany and France. In 2019, the U.K. Department for Digital, Culture, Media & Sport and Home Office released the Online Harms White Paper, which proposed a new type of regulatory framework—one based on a “code of practice.” The “code of practice” model was previously used by the British government in 2018 to regulate consumer-facing “smart” devices, such as “smart appliances...children’s toys, web cameras, and baby monitors,” which policymakers asserted were “vulnerable to cyber-attacks” (Wright and Javid 2019, pp. 83). Providers of such products were required to abide by a “code of practice” consisting of “outcome-focused guidelines” to ensure that “products and services [were] secure by design” (Wright and Javid 2019, pp. 83). In the case of social media, the White Paper proposed that the U.K.’s Office of

Communications (Ofcom) set “outcome-focused guidelines” requiring platforms to mitigate their product’s potential to cause harm to the public. The guidelines proposed “making content which has been disputed by reputable fact-checking services less visible to users, promoting authoritative news sources [and]... diverse news content,” and requiring more rigorous enforcement of the company’s rules when it came to disinformation (Wright and Javid 2019, pp. 71). The processes that the platforms used to achieve the regulatory objectives, however, would be up to them.

In 2022, the U.K. Labour Party released the first draft of its Online Safety Bill, which drew heavily from the Online Harms White Paper. In its initial form, the bill’s proposed scope of coverage captured a wide variety of “legal but harmful” content, including but not limited to disinformation with the potential to “undermine democracy” or threaten public health, as well as material promoting self-harm, suicide, and eating disorders (Guest 2023). Ofcom would be responsible for developing and enforcing regulatory codes with the aim of reducing the likelihood that social media users would be exposed to harmful content (MacCarthy 2022). The proposal was met with criticism from free speech groups and the conservative Tory opposition who argued that the bill would effectively create quasi-legal categories of speech that were “legal to say, but illegal to type” (Hern and Milmo 2022). Social media platforms expressed similar concerns that “the rules around legal but harmful content...would make them unfairly liable for material on their platforms” (Acres 2023). In response to concerns over the protection of legitimate free speech, the government (now a new Conservative administration) removed the “legal but harmful” clause from the Online Safety Bill. This revision appeased free speech groups and social media platforms but agitated misinformation experts who suggested that “Big

Tech” would be held “less accountable for spreading falsehoods” (Guest 2023). Despite concerns among experts that a watered-down version of bill would make for an ineffective response to the spread of harmful misinformation, the scrapping of the “legal but harmful” clause ultimately enabled the bill to become law in late October of 2023.

The revised framework requires that social media companies remove illegal content from their platforms, take down material that violates their stated terms of service, and provide adult users with more choice over the content that appears on their news feeds (Donelan 2022). Failure to comply with any of these regulations could result in a fine of up to 10% of the company’s gross revenue (Donelan 2022). As private companies, social media platforms are not bound by the same restrictions that governments are constrained by when it comes to limiting legal but harmful speech. In fact, many platforms already prohibit various categories of speech that remain legal in the offline world, such as vaccine misinformation or false claims about voter fraud and election rigging. In this way, governments can respond to the spread of harmful misinformation without directly encroaching on constitutional protections for legitimate free speech. Thus, requiring more diligent enforcement of a company’s own stated terms of service could prevent a significant amount of misinformation from spreading. At the same time, the effectiveness of this response may be limited considering the inconsistency of standards across platforms, which would allow misinformation that has been removed on one platform to continue to spread on another. Moreover, granting users more control over their own content exposure is not guaranteed to reduce misinformation spread. Users may very well self-select into unreliable sources that sustain their existing worldview.

By contrast, in the U.S., two Democratic senators advanced a response that focused exclusively on algorithmic regulation. In May 2023, Senators Michael Bennet and Peter Welch introduced the Digital Platform Commission Act which proposed regulation to make algorithmic processes “fair, transparent, and without harmful, abusive, anticompetitive, or deceptive bias” (*Digital Platform Commission Act 2023*). The proposed regulations would remain in effect at all times, monitored and enforced by a regulatory “Code Council” composed of members of public interest groups, data and machine learning scientists, and representatives from digital platforms (*Digital Platform Commission Act 2023*). If enforced, proponents have suggested that such regulation may be very effective at curbing the spread of false information, as it would prevent algorithms from intentionally skewing towards divisive, shocking, or misleading material as a means to drive user engagement. However, in recent years, Republicans have staunchly opposed the regulation of misinformation or disinformation on social media. In June 2023, Republicans on the House Judiciary Committee drafted an interim staff report in which they alleged that the Cybersecurity and Infrastructure Security Agency (CISA) colluded with social media platforms during the 2020 Presidential election to “censor those who claimed that Trump won” (Edsall 2023). The members of the committee asserted that “labeling speech as ‘misinformation’ or ‘disinformation’ does not strip it of its First Amendment protection,” (*The Weaponization of CISA*). While the proposed Digital Platform Commission Act does not explicitly hand power over to the government to decide what is and is not misinformation, the regulation of algorithms is intended to respond to the spread of disinformation that has “at times produced demonstrable harm” (*Digital Platform Commission Act of 2023*). The bill has been referred to the Committee on Commerce, Science, and Transportation for review. If, following committee review, the bill is

brought before Congress, Republicans may try to block it either through formal majority votes or by means of a filibuster in the Senate. If Democrats lack sufficient votes in the House and the Senate to support the bill or to overcome a Republican filibuster, it is unlikely that the bill will pass into law. At the same time, there is a possibility that Republicans would support the bill as they have long accused social media companies of dampening conservative voices on their platforms (Kovach 2020). While there is no evidence to suggest that platforms intentionally deprioritize conservative content, an algorithmic “fairness” clause may appeal to Republicans who believe that mainstream social media platforms suffer from a liberal bias.

Meanwhile, in June 2023, the Australian Labor Party unveiled the Combatting Misinformation and Disinformation Bill. The Labor Party proposed that platforms develop their own “misinformation codes” to prevent or respond to false claims on social media. Upon adoption, codes would remain in effect at all times. Examples of codes that a platform might adopt included: “preventing advertising involving misinformation or disinformation; preventing monetization of misinformation or disinformation; supporting fact checking; [and] allowing end-users to detect and report misinformation or disinformation” (*Communications Legislation Amendment 2023*). The Australian Communications and Media Authority (ACMA) would be responsible for ensuring that any infringement on freedom of political communication was “reasonable and not excessive,” and that the codes aimed to “provide adequate protection for the community against the harms of misinformation or disinformation” (*Communications Legislation Amendment 2023*). For instance, demonetizing misinformation would likely be considered a reasonable imposition on free speech as it seeks to eliminate the financial incentive for creating fake news stories rather than regulating the speech itself. Similarly, removing

financial incentives may mitigate potential harm by reducing the amount of fake news stories in circulation that could mislead voters, sow division, or erode trust in democratic institutions.

Since its introduction, the bill has received strong criticism from the Australian Human Rights Commission as well as the government's primary opposition, the Liberal Party. Opponents argued that the bill's definition of misinformation and disinformation was "overly broad and vague," which risked undermining protections for legitimate free speech (Finlay 2023). As defined in the bill, misinformation is "content...that is false, misleading or deceptive," while disinformation must be disseminated with the intention of "deceiv[ing] another person" (*Communications Legislation Amendment 2023*). To fall within the bill's scope of coverage, however, misinformation and disinformation must be reasonably likely to cause serious harm. In determining whether false claims fit this requirement, the ACMA considers "the potential reach and speed of the dissemination, the severity of the potential impacts of the dissemination, the author of the information, [and] the purpose of the dissemination" (*Communications Legislation Amendment 2023*). Despite these strict requirements, opponents remained concerned that "broad definitions" risked "enabling unpopular or controversial opinions or beliefs to be subjectively labelled as misinformation or disinformation and censored as a result" (Finlay 2023). In addition to concerns about the broadness of the proposed scope of coverage, the Liberal Party and the Australian Human Rights Commission raised concerns about the bill's exclusion of official government material from regulation, arguing that this could enable the ruling party to stifle opposing views with no repercussions (Finlay 2023).

4.4 Explaining Divergences in Democratic Responses to Misinformation

In this section, I explain why policymakers in different countries have advanced vastly different responses to their shared problem of misinformation spread. In Germany and France, governments responded to the problem of social media misinformation by removing illegal false claims. By contrast, some policymakers in Australia and the U.S. have proposed regulation for the systems that enable misinformation to spread. The U.K. bridges this divide by opting for both content removal *and* new systems to limit users' exposure to misinformation. In each country, however, legislation strive to achieve the same goal: prevent the viral spread of misinformation. In assessing the differences and similarities in each country's legal constraints, I explain why legislation develops in the way that it does.

Starting with Germany's NetzDG, the law's scope of coverage for harmful misinformation is limited to the existing restrictions on free speech as defined in the criminal code. This includes restrictions on Holocaust denial, defamation, and hate speech, among others (Glaun 2021). Historians have theorized that these restrictions are a reaction to the rise of Nazism in the late 1930s and the horrific genocide that followed, both of which made Germans more supportive of a "militant democracy" whereby "free speech could be constrained to protect democratic norms" (Tworek and Leerssen 2019, pp. 3). The fact that these restrictions were already in place allowed NetzDG to withstand both constitutional and public scrutiny and eventually become law. France's Organic Law on the Fight Against the Manipulation of Information emerged through a similar process. In its final form, the law's scope of coverage specifically addresses "inaccurate or misleading allegations or statements" made within the election period that are likely to impact or alter the outcome of the vote when "disseminated on a

massive scale in a deliberate, artificial or automated manner” (Blocman 2019). However, like NetzDG, this restriction on free speech was already enforced in the offline world by an existing legal statute. France’s Organic Law built on an 1881 law that prohibited the “publication, distribution or reproduction...of fake news or facts that have been manufactured, falsified or deceitfully attributed to third parties,” when “made in bad faith [to]... undermine public order” (Rives 2019). Originally, the 1881 law applied exclusively to material published by the press but was expanded to all online communication in 2004 (Craufurd-Smith 2019, pp. 3). Thus, the Organic Law merely adapted an existing restriction to respond more efficiently to the ways that false claims are distributed in the digital age. This precedent, along with the high threshold for content removal allowed the bill to become law. In effect, content removal laws can only be adopted if the false claims it aims to address are already restricted in the offline world. Limits on freedom of expression must apply equally across all spaces where speech can be disseminated.

Legal frameworks in the U.K., Australia, and the U.S. are far more constrained in terms of free speech. The U.K., for instance, was forced to abandon its efforts to regulate “legal but harmful” content after the House of Lords Communications and Digital Committee asserted that it was “an ‘unprecedented interference’ in freedom of expression” (Taylor and Tudor 2022). The absence of court involvement in this decision suggests that the U.K. government acknowledges the existing standards for the protection of legitimate speech and aims to uphold them. Meanwhile, the Australian criminal code prohibits false or intentionally misleading statements made on a formal application—for example, when applying for a license or permit—and false claims made in a defamatory or fraudulent way (*Criminal Code Act 1995*). Although free speech is not explicitly protected by the Australian constitution, the Australian High Court has determined in previous cases that the government must act in restraint on matters related to

freedom of expression (*Nationwide News Pty Ltd v. Wills*, 1992; *Australian Capital Television Pty Ltd v. the Commonwealth*, 1992; *Unions NSW v. New South Wales*, 2013). Australia's Combatting Misinformation and Disinformation bill prevents the ACMA from requesting that content be removed, once again suggesting that the government acknowledges the existing standard for free speech. In the U.S., the First Amendment protects the freedom to make false claims, except when they are defamatory or fraudulent (Volokh n.d). These freedoms are not easily changed, as the court imposes an important check on the government's power to revise constitutionally protected rights. In short, the presence of legal constraints restricts a government's ability to adopt the typical content removal response. Rather, in the U.K., the U.S., and Australia, proposed legislation focusses on behavioural regulation, such as algorithmic transparency, demonetization of misinformation, and enforcement of community guidelines, to address the systems through which misinformation is amplified on social media. Ultimately, it is too early to tell whether these newer forms of behavioural regulation will help to curb the spread of misinformation on digital platforms. Legislation in Australia and the U.S. are still undergoing committee review, and considering the criticism from the primary opposition parties, may very well fail to pass.

Chapter 5: A Canadian Response to the Spread of Misinformation on Social Media

At a 2019 technology conference in Paris, Canadian Prime Minister Justin Trudeau promised “meaningful financial consequences” for platforms that did not “step up in a major way to counter disinformation” (Reuters 2019). A year later, the Covid-19 pandemic spurred further discussion on the regulation of social media platforms. In an interview with CBC News, then Privy Council President Dominic LeBlanc admitted that previous government efforts had been

geared more towards protecting elections from misinformation (Thompson 2020). For instance, in 2018, the government updated a provision in the Canada Elections Act to clarify restrictions on false claims made about candidates during an election period. Then, in 2019, it introduced the Critical Election Incident Public Protocol (CEIPP) to inform Canadians of disinformation threats that could undermine the integrity of a federal election. However, for policymakers, it was the surge of false information during the Covid-19 pandemic and the public harm it created that demonstrated the need for the government to respond to misinformation beyond elections. LeBlanc stated that the federal government was considering new legislation that would make it illegal to spread misinformation that could harm others (Thompson 2020). At the time of this writing, the government of Canada has yet to introduce regulation for social media platforms or the user-generated content that is shared on them.

5.1 Canada's Current Approach to Misinformation Spread

In the following section, I explain Canada's current approach to dealing with misinformation spread on social media. Following the 2015 Canadian federal election, Marc Mayrand, then Chief Electoral Officer, proposed several amendments to the Canada Elections Act. Among them was a recommendation to repeal section 91, which prohibited the publication of knowingly false statements about a candidate's "personal character or conduct" made with the intention of affecting the results of an election (Mayrand 2016, pp. 71). According to Mayrand, section 91 was redundant because false claims about a candidate's character or conduct could be tried as defamation through established legal channels. In addition, Mayrand argued that "personal character and conduct" as a prohibited category of speech was too broad and lacked clarity, which made it difficult for the courts to interpret (Mayrand 2016, pp. 71). By contrast,

Yves Côté, the Commissioner of Canada Elections, recommended that the government simply clarify section 91's scope of coverage rather than repeal it altogether. In clarifying the scope, the Standing Committee on Procedure and House Affairs (PROC) was instructed to refer to how the court had historically interpreted the provision. For instance, in 2001, a Conservative campaign manager from Manitoba was accused of falsely publishing that the NDP opposition candidate was a "liar, a thief, and a drug dealer with a criminal record" (CBC 2001). In this case, the campaign manager was found guilty of violating section 91 for spreading false claims about a candidate's character and conduct with the intention of affecting the results of the election. In another, the court ruled that false claims made about a candidate's Parliamentary attendance record were insufficient to justify a conviction under section 91 (PROC June 8, 2017). In effect, the court's historical interpretation of section 91 only covered false claims that had the potential to seriously damage a candidate's reputation with voters.

In view of these legal precedents, the committee proposed changing section 91's scope of coverage to false statements that a public figure was guilty of or under investigation for an "offence under an Act of Parliament," in addition to false claims made about a candidate's "citizenship, place of birth, education, professional qualification, or membership in a group or association"—all of which had to be made knowingly and with the intention of affecting the results of an election to justify a conviction (*Elections Modernization Act, 2018*). The committee asserted that these categories of false claims would have fallen under personal character or conduct regardless. Naming the specific types of false claims that were prohibited simply made the provision easier for the courts to interpret. The Conservative members of the PROC committee objected to the "expansion of power to police political speech during an election

period” and to the requirement that any legal expenses incurred from allegedly violating section 91 be drawn from regulated campaign funds (PROC 35th report, pp. 21-22). They argued that the latter could disproportionately disadvantage one party’s campaign relative to another. Ultimately, the committee’s Conservative minority were unsuccessful in their efforts to rescind the proposed revisions to section 91 of the Canada Elections Act. The amendments passed into law in 2018 ahead of the 2019 federal election campaign.

While section 91 granted the Crown the ability to charge those who spread harmful lies about candidates, it was not designed to mitigate the harmful effects of misinformation spread. More specifically, it was not intended to counter false belief and imposed no requirements on social media companies to remove posts that violated section 91. Recognizing this policy gap, policymakers implemented a new response focused on mitigating harm to the public caused by the propagation of false information. The CEIPP was installed ahead of the 2019 federal election should the situation arise where Canadians needed to be urgently, and more importantly, impartially informed about a potential foreign or domestic disinformation threat (Judd 2020, pp. 1). During the election period, a panel of five non-partisan senior public servants, including the Clerk of the Privy Council, the National Security and Intelligence Advisor to the Prime Minister, and the Deputy Ministers of Justice, Foreign Affairs Canada, and Public Safety, monitor potential threats to the election. A public announcement is triggered if the panel receives credible evidence that a particular disinformation threat could undermine “Canada’s ability to have a free and fair election” (Judd 2020, pp. 13-14). Much like France’s Organic Law, there is a high threshold for action to allow the government to “retain as light a footprint as possible” in matters related to democratic discourse (Rosenberg 2023, pp. 14).

As a response to the problem of social media misinformation, evidence from the 2019 election period suggests that section 91 was moderately effective at preventing the spread of misinformation. The Conservative Party posted and then promptly deleted a tweet in which they falsely claimed that Trudeau was under criminal investigation for the SNC-Lavalin affair (Dyer 2019). Had the tweet not been removed, the Conservative Party could have been charged for violating section 91. The swift deletion of the tweet, therefore, suggests that the new revisions to section 91 encouraged parties to self-regulate and deterred the sharing of unverified claims. The effectiveness of CEIPP as a response to the spread of false claims, however, remains unknown as no public announcements were made to counter disinformation during either the 2019 or 2021 election periods. Government investigations following the 2021 federal election found “efforts” of interference from foreign and domestic actors during both election periods. At the time, officials concluded that the “efforts” were not severe enough to threaten the integrity of the election and therefore did not justify a public announcement (Johnston 2023, pp. 48). Since then, policy scholars have recommended that the scope of coverage be expanded to include lower-level disinformation threats, such as “localized interference affecting a specific member of Parliament or a party’s campaign” (Wark 2023). This recommendation was ultimately not adopted, as it would have required the government to exert more influence over the flow of information, something they could not do while also retaining a light touch in matters related to democratic discourse. In resolving this dilemma, Canadian policymakers should consider a response like those advanced in the U.K., the U.S., and Australia, where the responsibility to act on the problem of misinformation is pushed back onto the companies that facilitated its spread. In doing so, the government creates distance between public discourse and decisions that are made to reduce the spread of false information on social media.

5.2 Prospects and Recommendations for Canadian Policymaking

In this final section, I turn to prospects and recommendations for Canadian policymaking. In Canada, legislation aiming to control the spread of misinformation must meet the court's standard for a reasonable infringement on section 2(b) of the Charter of Rights and Freedoms, which confers on citizens "freedom of thought, belief, opinion and expression, including freedom of the press and other media of communication" (*Constitution Act 1982*). Historically, the courts have interpreted section 2(b) as a content-neutral provision that protects truths and falsehoods equally (*R. v. Zundel, 1992*), if expressed in a way that "conveys or attempts to convey meaning" (*Thomson Newspapers Co., supra; Irwin Toy Ltd., supra*). Of course, there are exceptions to this rule. Fraud, hate speech, incitement of violence, and threats, all convey meaning but are not protected by the Charter, as the way they are expressed is harmful to others. Recognition of falsehoods as a protected form of speech is attributed to a 1992 Supreme Court ruling that repealed Canada's restriction on publishing knowingly false statements "likely to cause injury or mischief to a public interest" (*R. v. Zundel, 1992*). In 1992, the Crown charged Ernst Zundel under section 181 of the criminal code for publishing a pamphlet that denied known facts about the Holocaust. Following his conviction, Zundel appealed the ruling to the Supreme Court citing freedom of expression as his defense. In reviewing the case, the Supreme Court rejected the Crown's application of section 181, arguing that the provision's original purpose was to prevent "deliberate[ly] slanderous statements against the nobles of the realm," and was not intended to combat "hate propaganda" (*R. v. Zundel, 1992*). The Supreme Court also took issue with the fact that someone could be imprisoned on the grounds that a judge or jury deemed a falsehood likely to cause injury or mischief to "some undefined public interest," which they argued was too broad to reasonably limit freedom of expression (*R. v. Zundel, 1992*).

Striking section 181 from the criminal code enforced a new standard that extended freedom of expression to “minority beliefs which the majority regards as wrong or false” (*R. v. Zundel, 1992*). At the same time, this decision imposed a legal constraint on legislative responses to social media misinformation, as the government cannot restrict false claims on social media if they remain a legitimate form of speech in the offline world. The government might be able to justify the removal of false claims that fall under section 91 of the Canada Elections Act. However, Canadian officials may find that such a response is insufficient to address the spread of misinformation beyond the provision’s limited scope of coverage. Policymakers in Germany and France experienced such challenges with their respective content removal regimes.

In 2022, the government of Canada assembled a panel to advise on a future online anti-harm regime. The panel comprised experts in platform governance, tech regulation, civil liberties, and national security. The initial framework that the government proposed was similar to the U.K.’s Online Safety Act, in that it would only restrict illegal material, such as terrorist content, incitement of violence, hate speech, non-consensual sharing of intimate images, and child sexual exploitation (Aiello 2022). The advisory panel expressed concerns that the proposed scope of coverage failed to address other harmful online content, including the amplification of misinformation and disinformation on social media. At the same time, the experts were cognizant that regulating false claims could require the government to pass judgements on truth, something they cautioned against. To avoid making the government the arbiter of truth, the advisory panel recommended a “risk-based” approach focused on mitigating harm to the public. Much like the regulatory “codes of practice” proposed in Australia and the U.S., a “risk-based” approach would require that platforms address how disinformation is amplified on their platforms. More specifically, the advisory group recommended that platforms prevent bot

networks, inauthentic accounts, and “deepfakes” from being picked up by an algorithm and promoted to other users. (Expert Advisory Group on Online Safety, June 3, 2022). In addition, the advisory panel recommended that social media platforms grant users more autonomy over their digital environments by providing the option to filter out known misinformation sources (Expert Advisory Group on Online Safety, June 3, 2022).

In view of these developments, it is important to consider how such regulatory regimes might be enforced in practice. In Canada’s case, verifying that a platform has successfully prevented algorithms from promoting bot accounts would not infringe on freedom of expression as bots do not possess Charter rights. By contrast, the U.K.’s Online Safety Act requires that platforms enforce their own community guidelines. Verifying that a platform has, for instance, removed all false claims of election fraud or ballot rigging in line with its stated terms of service would first require that the government decide which claims of election fraud are false. Granting this power to the government creates opportunities for the ruling party to silence dissent and opposition. Notably, in March 2022, Russia announced 15-year prison sentences for citizens who shared “fake” news about the war in Ukraine—that is, information that contradicted the official government position (Kozyreva et al. 2023, pp. 2). As a result, many local journalists and news organizations limited their coverage of the invasion or chose to withdraw entirely from the country (Kozyreva et al. 2023, pp. 2). To protect against democratic backsliding, Canadian policymakers should consider establishing guardrails to ensure that enforcing compliance does not undermine protections for legitimate free speech. For instance, Australia’s Combatting Misinformation and Disinformation bill explicitly states that the ACMA “will not have the power to request specific content or posts be removed from digital platform services” (*Communications Legislation Amendment 2023*). Similarly, the U.S. Digital Platform Commission Act specifies

that “vetted, nonprofit, financially disinterested academic institutions and experts” be granted access to algorithmic data “for the purposes of research and analysis consistent with the public interest” (*Digital Platform Commission Act 2023*). The former prevents the government from censoring false claims that remain legitimate forms of speech offline, while the latter allows algorithmic processes to be reviewed by independent and non-partisan entities. Ultimately, the development of guardrails to protect legitimate free speech is just as important as the development of the response to the spread of misinformation on social media. Without them, governments risk becoming the all-powerful authority on truth.

Finally, Canadian policymakers should consider granting platforms autonomy in deciding how they will achieve regulatory outcomes. This recommendation is drawn from the Australian Combatting Misinformation and Disinformation bill, under which “entities have the flexibility to develop their own measures in a way that best reflects their services and business models” (ACMA 2021, pp. 50). The advantage of such a system is that it avoids a government-imposed “one-size-fits-all” approach and allows platforms to tailor solutions to their unique contexts. Furthermore, it may also encourage greater collaboration between the social media industry and academic researchers, as platforms search for new ways to counter false beliefs and respond to the spread of misinformation. Until the Nyhan et al. and Meta collaboration published in 2023, social media platforms were reluctant to share proprietary knowledge, like algorithms, with researchers or provide them with access to their platforms for experimental purposes. While reports indicate that Facebook conducted internal tests aimed at reducing polarization and the spread of misinformation, the results were not shared with the public. Many responses to the spread of misinformation proposed by academics have only been tested in simulated laboratory

settings, which are imperfect replications of the social media environment and, therefore, may not produce accurate results of a response's likely effectiveness. Thus, legislation that may encourage this sort of collaboration would likely help to fill knowledge gaps and develop better interventions to reduce the spread of misinformation.

Chapter 6: Conclusion

Democracy demands restraint in government responses to the spread of misinformation on social media. In Canada, the U.K., the U.S., and Australia, citizens retain the right to say or publish harmful misinformation, with very few exceptions. As a result, regulation that treats online speech differently risks being overturned by the courts. By contrast, in Germany and France, the right to promote certain falsehoods is already restricted to protect democratic norms. However, regulation that applies exclusively to illegal content or that has an impossibly high threshold for removal may systematically fail to control the spread of misinformation overall. Thus, regulatory regimes that push the onus back onto companies, like the ones proposed in the U.S. and Australia, compel platforms to address the ways in which they facilitate misinformation spread. In this way, the government uses its authority not to police speech but to force social media companies to act on the problem of misinformation, holding them accountable for the ways in which their products have caused harm.

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